

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DAMION MCKOY,

Plaintiff

-against-

THE CITY OF NEW YORK; COMMISSIONER
RAYMOND W. KELLY; SGT. DANIEL SBARRA; P.O.
JORGE ULLOA, Shield # 03103; and P.O. JOHN DOES #
1-5; the individual defendants sued individually and in their
official capacities,

Defendants.
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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. The claims arise from an incident(s), which occurred on or about December 9, 2006 through December 6, 2007. During the incidents, the City of New York and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, false arrest and imprisonment, excessive force, assault and battery, unlawful search and seizure, unlawful strip-search, malicious prosecution, denial of medical treatment, conversion of chattels, unconstitutional conditions of confinement, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks

COMPLAINT
08-2022

BOA Case
VITALIANO, J
Jury Trial Demanded

MANN M.J.
FILED
U.S. DISTRICT COURT
EASTERN DISTRICT OF NEW YORK
MAY 20 2008
BROOKLYN OFFICE

compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide claims arising under state law. A notice of claim was duly filed on the City of New York within 90 days of the incidents at issue, more than 30 days have elapsed since such filing and the City has refused to settle plaintiff's claims. Moreover, this action has been filed within one year and 90 days of the incidents that are the basis of this claim.

4. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391 because some of the acts in question occurred in Kings County, and the City of New York is subject to personal jurisdiction in the Eastern District of New York.

PARTIES

5. Plaintiff Damion McKoy is a resident of the state of New York, Kings County.

6. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. Defendant Raymond W. Kelly is the Commissioner of the NYPD who violated plaintiff's rights as described herein.

8. Defendant Sergeant Daniel Sbarra is a New York City Police Supervisor employed with the 81st Precinct and/or Brooklyn North Narcotics located in Brooklyn, New York who violated plaintiff's rights as described herein.

9. Defendant P.O. Jorge Ulloa, is a New York City Police Officer, assigned Shield # 03103, employed with the 81st Precinct and/or Brooklyn North Narcotics located in Brooklyn, New York who violated plaintiff's rights as described herein.

10. Defendant Police Officer John Does # 1-5 are New York City Police Officers employed with the 81st Precinct and/or Brooklyn North Narcotics located in Brooklyn, New York who violated plaintiff's rights as described herein.

11. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

12. The following is a summary set forth for the purpose of demonstrating, and providing notice of plaintiff's claims against the defendants. Plaintiff has not set forth each and every fact concerning the incident(s) described below.

13. On December 9, 2006, at approximately 2:00 a.m., at and in the vicinity of 570 Kosciusko Street, Brooklyn, New York, police officers assigned to the 81st Precinct and/or Brooklyn North Narcotics, located in Brooklyn, New York, including upon information and belief, defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5, at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

14. On December 9, 2006, at approximately 2:00 a.m. at and in the vicinity of 570 Kosciusko Street, Brooklyn, New York, defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5, at times acting in concert and at times acting independently, without either an arrest

warrant, a search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime, falsely arrested plaintiff.

15. Once defendants approached plaintiff, plaintiff was not free to disregard the defendants' questions, walk away or leave the scene.

16. During the arrest of plaintiff, defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5, maliciously, gratuitously, and unnecessarily grabbed and shoved plaintiff, punched plaintiff in the face and body, beat plaintiff to the ground, kicked plaintiff while on the ground, twisted plaintiff's arms, placed excessively tight handcuffs on plaintiff's wrists, kicked plaintiff after he was handcuffed, and dragged plaintiff into a police vehicle. Plaintiff was injured as a result of these acts. Those defendants who did not touch plaintiff witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

17. Thereafter, the defendant Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5 brought plaintiff to the 81st Precinct in Brooklyn, New York, where they unlawfully strip-searched plaintiff, without justification or cause in a public, before transporting him to Brooklyn Central Booking for further processing.

18. Plaintiff was subjected to NYPD's unlawful policy of strip-searching individuals in public regardless of reasonable suspicion or probable cause at the above location.

19. In Shain v. Ellison, 273 F.3d 56 (2d Cir. 2001), the Second Circuit held that the Fourth Amendment to the United States Constitution prohibits officials from performing strip searches of arrestees charged with misdemeanors or other lesser offenses unless there exists reasonable suspicion that the arrestee is concealing a weapon or other contraband based on the crime charged, the particular characteristics of the arrestee, or the circumstances of the arrest.

20. The fact that the strip search of plaintiff was carried out in a non-private manner, regardless of the criminal charge, is sufficient in and of itself to violate the Constitution. It is well established that, even where there is justification for a strip search the search must be conducted in a reasonable manner. A strip search is unreasonable if it is carried out in a non-private manner and in the presence of nonessential people, such as other detainees and inmates.

21. At the 81st Precinct in Brooklyn, New York, defendant Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5 denied plaintiff medical care despite his visible injuries and complaints.

22. Defendant Sgt. Sbarra supervised P.O. Ulloa, and P.O. John Does # 1-5 in the above-detailed unlawful conduct.

23. While at Central Booking plaintiff was subjected to depraved, filthy, and inhumane conditions of confinement, including overcrowding, temperature extremes, and toilet facilities that overflowed onto the floor.

24. The guards and personnel assigned to Central Booking looked the other way at these dangerous conditions, and ignored arrestees, including plaintiff, who sought their assistance.

25. While plaintiff was incarcerated at the 81st Precinct and Central Booking awaiting arraignment, defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5, pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed a serious crime(s); and the District Attorney's Office decided to prosecute plaintiff under docket number 2006KN085302, in an action incorrectly entitled People v. Damien McCoy, until the criminal case was dismissed on or about December 6, 2007.

26. Defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5 initiated the above-stated malicious prosecution against plaintiff.

27. Defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5 lacked probable cause to believe the above-stated malicious prosecution could succeed.

28. Defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5 acted with malice to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution.

29. The above-stated malicious prosecution, defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5 initiated, caused a sufficient post-arraignment liberty restraint on plaintiff.

30. The above-stated malicious prosecution, defendants Sgt. Sbarra, P.O. Ulloa, and P.O. John Does # 1-5 initiated, terminated in plaintiff's favor on or about December 6, 2007.

31. The aforesaid events are not an isolated incident. Defendants Commissioner Raymond W. Kelly and Sgt. Sbarra have been aware (from lawsuits, notices of claim and complaints) that many of the NYPD's officers are insufficiently trained on the proper way to use force, search arrestees or detainees, and treat innocent and/or uninvolved individuals who are found at an incident scene and/or investigation location. Commissioner Kelly and Sgt. Sbarra are further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, Commissioner Kelly and Sgt. Sbarra have failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

32. Moreover, Commissioner Kelly and Sgt. Sbarra were aware prior to the incident that the defendants lacked the objectivity, temperament, maturity, discretion, and

disposition to be employed as police officers. Despite such notice, Commissioner Kelly and Sgt. Sbarra have retained these officers, and failed to adequately train and supervise them.

33. Plaintiff did not resist arrest at any time during the above incidents.

34. Plaintiff did not engage in suspicious, unlawful or criminal activity prior to or during the above incidents.

35. The individual defendants did not observe plaintiff engaged in suspicious, unlawful, or criminal conduct at any time prior to or during the above incidents.

36. At no time prior, during, or after the above incidents were the individual defendants provided with information or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had engaged in suspicious, unlawful or criminal conduct.

37. As a result of defendants' actions plaintiff experienced personal and physical injuries (including a hematoma to his eye, contusions, lacerations, bruises, aches and swelling), pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

**FEDERAL AND STATE CLAIMS AGAINST
THE INDIVIDUAL DEFENDANTS**

38. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

39. The conduct of defendant officers, as described herein, amounted to false arrest and imprisonment, excessive force, assault and battery, unlawful search and seizure, unlawful strip-search, malicious prosecution, denial of medical treatment, conversion of chattels, unconstitutional conditions of confinement, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, abuse of

process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

40. The conduct of the defendant officers, as described herein, violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and New York State law, by committing false arrest and imprisonment, excessive force, assault and battery, unlawful search and seizure, unlawful strip-search, malicious prosecution, denial of medical treatment, conversion of chattels, unconstitutional conditions of confinement, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

41. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and New York State law.

42. Defendants acted recklessly to deprive plaintiff of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and New York State law.

43. Defendants acted negligently to deprive plaintiff of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and New York State law.

44. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

45. The plaintiff is also entitled to receive punitive damages because defendants' actions were motivated by extreme recklessness and indifference to the plaintiff's rights.

**FEDERAL AND STATE CLAIMS AGAINST
DEFENDANT KELLY**

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Defendant Raymond W. Kelly is liable, in his official capacity, to plaintiff because: (1) he created and allowed to continue a policy or custom under which unconstitutional practices occurred, (2) he was grossly negligent in supervising subordinates who committed the wrongful acts, and (3) he exhibited deliberate indifference to the rights of others by failing to act on information indicating that unconstitutional acts were occurring.

48. Upon information and belief, defendant Kelly was aware from notices of claim, lawsuits, complaints, and the NYPD's own observations that the officers sued in the present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

49. Nevertheless, defendant Kelly exercised deliberate indifference by failing to take remedial action.

50. The aforesaid conduct by defendant Kelly violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and New York State law, by failing to re-train the defendant subordinate officers, failing to adequately discipline the defendant subordinate officers, failing to adequately investigate prior complaints against the defendant subordinate officers either at the facilities where the incidents occurred and/or at his Headquarters located in New York, New York, and creating a culture where officers are encouraged to ignore, harass, assault and violate those who question their authority, and acting in a manner which amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

51. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal injuries, pain and suffering, fear, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

52. The aforesaid conduct of defendant Kelly amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

**FEDERAL AND STATE CLAIMS AGAINST
THE CITY OF NEW YORK**

53. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. The City of New York directly caused the constitutional violations suffered by plaintiff.

55. Upon information and belief, the City of New York was aware from notices of claim, lawsuits, complaints, and from the NYPD's own observations, that the officers

involved in the present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

56. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City of New York failed to properly train, re-train, supervise, discipline, monitor, and improperly utilized and retained these officers. Moreover, the City of New York failed to adequately investigate prior complaints against the officers and created a culture where officers can ignore, harass, assault and violate individuals without consequence. Indeed, when individuals file complaints against officers, the City has a practice of failing to substantiate or address the complaint, even under circumstances where the complaint is corroborated and credible, and the account given by the officer is unworthy of belief.

57. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and New York State law.

58. Moreover, the aforesaid conduct by the City of New York amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

59. Finally, under state law, the City of New York is responsible for its employees' actions under the doctrine of respondeat superior.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees; and

- d. Such other and further relief as this Court may deem just and proper,
including injunctive and declaratory relief.

DATED: New York, New York
May 19, 2008

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